Bureau of
FAR EASTERN AFFAIRS
DEC 27 1954
ASSISTANT SECRETARY
Department of State

December 22, 1954

The President:

I have the honor to submit to you, with a view to the transmission thereof to the Senate for its advice and consent to ratification, the Mutual Defense Treaty between the United States of America and the Republic of China, signed at Washington on December 2, 1954.

The history of the negotiation of this Treaty extends over the past year. Preliminary consideration of such a Treaty was given following a proposal first made by the Republic of China in December 1953. Following the signature of the Manila Pact on September 8, 1954, it seemed more than ever appropriate that this Treaty should be made. I, therefore, visited Taipei on September 9, 1954 and discussed the scope and nature of the projected

The President,

The White House.

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the projected treaty with President Chiang Kai-shek.

Following my return to the United States, it was decided in principle to proceed actively to conclude the treaty, and to this end the Assistant Secretary of State for Far Eastern Affairs, Mr. Robertson, went to Formosa (Taiwan) in October 1954. Subsequent negotiations were conducted at Washington. The principal negotiator for the Republic of China was His Excellency Yeh Kung-ch'ao, Minister for Foreign Affairs, who was available in Washington concurrently with his work as head of the Chinese delegation to the United Nations.

This treaty represents another link in the chain of collective defense arrangements in the West Pacific which bind the nations of the free world together in their common determination to resist further encroachments by the forces of communism. The treaty is entirely defensive in character and intent. It is based on a mutuality of interest and responsibility. Even though bilateral and limited

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and limited in scope to but one area of the world, the Treaty reaffirms, in the first paragraph of the preamble and repeated elsewhere through the text of the Treaty, the signatories' faith in, and deep sense of responsibility in working toward fulfillment of, the principles and purposes of the United Nations.

The Treaty consists of a preamble and ten substantive articles. The preamble reaffirms the adherence of both governments to the aims of the United Nations and their peaceful intentions, recalls their relationship during World War II, declares their sense of unity and determination to defend themselves against external armed attack "so that no potential aggressor could be under the illusion that either of them stands alone", and contemplates further development of a more comprehensive system of regional security in the West Pacific Area.

Article I contains provisions similar to those in comparable articles of other security treaties. By its terms

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terms the Parties reaffirm their solemn obligations under the Charter of the United Nations to settle by peaceful means any international disputes in which they may be involved, and to refrain in their international relations from the threat or use of force inconsistent with the purposes of the United Nations.

Article II incorporates in the Treaty the principle of the Vandenberg resolution (S. Res. 239, 80th Cong.), which advises that regional and collective security arrangements joined in by the United States be based on continuous self-help and mutual aid. The Parties pledge themselves by such means to maintain and develop their individual and collective capacity to resist armed attack and communist subversive activities directed from without against their territorial integrity and political stability.

Article III confirms the agreement of the two Parties to strengthen the base of freedom and to cooperate in economic and social advances which are so closely

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connected both with a successful resistance to communism and also with the greater welfare of the people.

Consultation regarding implementation of the Treaty, as the need arises, is provided for under Article IV.

By Article V, each Party recognizes that an armed attack in the West Pacific Area directed against the territories of either Party would be dangerous to its own peace and safety and declares that it would act to meet the common danger in accordance with its constitutional processes. Here again the Treaty makes it clear that there is to be no conflict with the United Nations, for measures taken to deal with an external armed attack are to be reported immediately to the Security Council of the United Nations and such measures as are taken will be terminated when the Security Council has taken the measures necessary to restore and maintain international peace and security.

The territories to which Articles II and V apply are

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specified in Article VI to be "in respect of the Republic of China, Taiwan and the Pescadores; and in respect of the United States of America, the island territories in the West Pacific under its jurisdiction". It is also provided that Articles II and V will be applicable to such other territories as may be determined by mutual agreement.

Article VII grants to the United States the right to dispose such land, air and sea forces in and about Taiwan and the Pescadores as may be required for their defense, as determined by mutual agreement. It does not make such disposition automatic or mandatory.

Article VIII makes clear that the obligations of the Parties under the Treaty do not affect in any way their obligations under the United Nations Charter. It recognizes the primary responsibility of the United Nations in maintaining international peace and security.

Articles IX and X specify that the Treaty is to come into force with the exchange of ratifications at

Taipei

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Taipei and that the Treaty has indefinite duration, with provision for termination on one year's notice.

There are also enclosed, with a view to their transmittal for the information of the Senate, the texts of notes exchanged between the Secretary of State and the Chinese Foreign Minister dated December 10, 1954. These notes express the understanding of the signatories with respect to some phases of the implementation and operation of the Treaty. They make clear the recognition by the Parties of the inherent right of the Republic of China to the self-defense of all territory now or hereafter under its control. They confirm the understanding of the Parties that the use of force from such territories will be a matter of joint agreement, subject to action of an emergency character in the exercise of the right of self-defense. They recognize the mutual interests of the Parties by providing that military elements which are a product of joint effort and contribution will not be removed from the Treaty area to such an extent as substantially

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unintentionally to attack its defensibility without mutual agreement.

I believe that the Treaty will serve as an important deterrent to possible Communist efforts to seize positions in the West Pacific area, which seizure, if attempted, would, in fact, provoke a reaction on the part of the United States. By making clear that we recognize that an armed attack on the Treaty area would be regarded by us as dangerous to our own peace and safety and that we would act to meet the danger, we give the world notice which, we are entitled to hope, will prevent hostile miscalculations and thus contribute to the peace and security of the area. Therefore, I hope that this Treaty will be given early and favorable consideration by the Senate.

Respectfully submitted,

John Foster Dulles

Enclosures:

1. Mutual Defense Treaty with the Republic of China.
2. Texts of notes exchanged on December 10, 1954.

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